

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

Filed on

-----X
MILES SUTTON,

Index No.

Plaintiff,

Plaintiff designates Queens
County as place of trial

-against-

SUMMONS

CITY OF NEW YORK, NEW YORK POLICE
DEPARTMENT, POLICE OFFICER JOSEPH
FERRIGNO – Shield No. 15647, SERGEANT
EDELIO CRUZ, DETECTIVE “JOHN” SHELLS
and POLICE OFFICER “JOHN DOE”, first and
last names “JOHN” AND “DOE” being fictitious
and unknown at the present time,

The basis of venue is the place of
the occurrence of the tort.

Plaintiff resides at:
19-19 Cornaga Avenue, #2
Far Rockaway, NY 11619

Defendants.
-----X

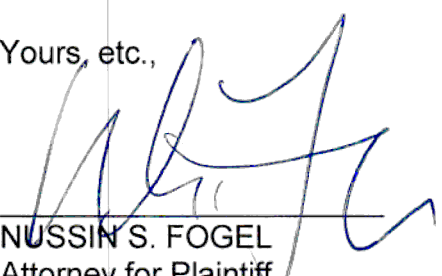
County of Queens

TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the Complaint in this action and to serve a copy of your answer, or, if the Complaint is not served with this summons, to serve a notice of appearance, on the plaintiff's attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Amended Complaint.

Dated: New York, New York
April 2, 2019

Yours, etc.,



NUSSIN S. FOGEL
Attorney for Plaintiff
299 Broadway - Suite 1818
New York, New York 10007
(212) 385-1122

Defendants' Addresses:

CITY OF NEW YORK
1 Centre Street
New York, NY 10007

NEW YORK POLICE DEPARTMENT
One Police Plaza
New York, NY 10007

POLICE OFFICER JOSEPH FERRIGNO – Shield No. 15647
c/o NEW YORK POLICE DEPARTMENT
One Hundred First (101st) Precinct
16-12 Mott Avenue
Far Rockaway, NY 11691

SERGEANT EDELIO CRUZ
c/o NEW YORK POLICE DEPARTMENT
1 Police Plaza
New York, NY 10038

DETECTIVE "JOHN" SHELLS
c/o NEW YORK POLICE DEPARTMENT
1 Police Plaza
New York, NY 10038

POLICE OFFICER "JOHN DOE"
c/o NEW YORK POLICE DEPARTMENT
1 Police Plaza
New York, NY 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS-----X
MILES SUTTON,

Plaintiff,

-against-

VERIFIED COMPLAINT

CITY OF NEW YORK, NEW YORK POLICE
DEPARTMENT, POLICE OFFICER JOSEPH
FERRIGNO – Shield No. 15647, SERGEANT EDELIO
CRUZ, DETECTIVE “JOHN” SHELLS and POLICE
OFFICER “JOHN DOE”, first and last names “JOHN”
AND “DOE” being fictitious and unknown at the
present time,

Defendants.
-----X

Plaintiff, MILES SUTTON, for his Verified Complaint by his attorney, NUSSIN S.
FOGEL, respectfully alleges as follows:

1. That, at all times hereinafter mentioned, plaintiff herein was and still is a resident of the County of Queens, City and State of New York.
2. That, at all times hereinafter mentioned, defendant, CITY OF NEW YORK, was and still is a municipal corporation duly organized under the laws of the State of New York.
3. That, at all times hereinafter mentioned, defendant, NEW YORK POLICE DEPARTMENT, was and still is a municipal agency of defendant, CITY OF NEW YORK.
4. That, at all times hereinafter mentioned, defendant, POLICE OFFICER JOSEPH FERRIGNO – Shield No. 15647, was and still is an employee of defendant, CITY OF NEW YORK.
5. That, at all times hereinafter mentioned, defendant, POLICE OFFICER JOSEPH FERRIGNO – Shield No. 15647, was and still is an employee of defendant, NEW

YORK POLICE DEPARTMENT.

6. That, at all times hereinafter mentioned, defendant, SERGEANT EDELIO CRUZ, was and still is an employee of defendant, CITY OF NEW YORK.

7. That, at all times hereinafter mentioned, defendant, SERGEANT EDELIO CRUZ, was and still is an employee of defendant, NEW YORK POLICE DEPARTMENT.

8. That, at all times hereinafter mentioned, defendant, DETECTIVE "JOHN" SHELLS, was and still is an employee of defendant, CITY OF NEW YORK.

9. That, at all times hereinafter mentioned, defendant, DETECTIVE "JOHN" SHELLS, was and still is an employee of defendant, NEW YORK POLICE DEPARTMENT.

10. That, at all times hereinafter mentioned, defendant, POLICE OFFICER "JOHN DOE" first name "JOHN" and last name "DOE" being fictitious and unknown at the present time, were and still are employees of defendant, CITY OF NEW YORK.

11. That, at all times hereinafter mentioned, defendant, POLICE OFFICER "JOHN DOE" first name "JOHN" and last name "DOE" being fictitious and unknown at the present time, were and still are employees of defendant, NEW YORK POLICE DEPARTMENT.

12. That, plaintiff herein has complied with all of the conditions precedent to the bringing of the within action and more particularly, on or about the 12th day of April, 2018, and within ninety (90) days after the occurrence set forth herein, plaintiff duly served a written Notice of Claim upon the defendants herein, pursuant to law, and was assigned claim number 2018PI011519; that, more than thirty (30) days have elapsed since said Notice of Claim has been served; that said claims remains unadjusted and defendants herein have failed and refused to make any adjustments thereto; that the within action has been commenced within one year and ninety days of the date of the occurrence.

13. That, at all times hereinafter mentioned, defendant, CITY OF NEW YORK, owned the One Hundred First (101st) Precinct of the New York Police Department located at 16-12 Mott Avenue, Far Rockaway, NY.

14. That, at all times hereinafter mentioned, defendant, NEW YORK POLICE DEPARTMENT, owned the One Hundred First (101st) Precinct of the New York Police Department located at 16-12 Mott Avenue, Far Rockaway, NY.

15. That, at all times hereinafter mentioned, defendant, CITY OF NEW YORK, operated the One Hundred First (101st) Precinct of the New York Police Department located at 16-12 Mott Avenue, Far Rockaway, NY.

16. That, at all times hereinafter mentioned, defendant, NEW YORK POLICE DEPARTMENT, operated the One Hundred First (101st) Precinct of the New York Police Department located at 16-12 Mott Avenue, Far Rockaway, NY.

17. That, at all times hereinafter mentioned, defendant, CITY OF NEW YORK, controlled the One Hundred First (101st) Precinct of the New York Police Department located at 16-12 Mott Avenue, Far Rockaway, NY.

18. That, at all times hereinafter mentioned, defendant, NEW YORK POLICE DEPARTMENT, controlled the One Hundred First (101st) Precinct of the New York Police Department located at 16-12 Mott Avenue, Far Rockaway, NY.

19. That, at all times hereinafter mentioned, defendant, CITY OF NEW YORK, supervised the One Hundred First (101st) Precinct of the New York Police Department located at 16-12 Mott Avenue, Far Rockaway, NY.

20. That, at all times hereinafter mentioned, defendant, NEW YORK POLICE DEPARTMENT, supervised the One Hundred First (101st) Precinct of the New York Police Department located at 16-12 Mott Avenue, Far Rockaway, NY.

21. That, at all times hereinafter mentioned, defendant, CITY OF NEW YORK, owned the Queens County Central Booking Facility located at 125-01 Queens Blvd Kew Garden, NY.

22. That, at all times hereinafter mentioned, defendant, NEW YORK POLICE DEPARTMENT, owned the Queens County Central Booking Facility located at 125-01 Queens Blvd Kew Garden, NY.

23. That, at all times hereinafter mentioned, defendant, CITY OF NEW YORK, operated the Queens County Central Booking Facility located at 125-01 Queens Blvd Kew Garden, NY.

24. That, at all times hereinafter mentioned, defendant, NEW YORK POLICE DEPARTMENT, operated the Queens County Central Booking Facility located at 125-01 Queens Blvd Kew Garden, NY.

25. That, at all times hereinafter mentioned, defendant, CITY OF NEW YORK, controlled the Queens County Central Booking Facility located at 125-01 Queens Blvd Kew Garden, NY.

26. That, at all times hereinafter mentioned, defendant, NEW YORK POLICE DEPARTMENT, controlled the Queens County Central Booking Facility located at 125-01 Queens Blvd Kew Garden, NY.

27. That, at all times hereinafter mentioned, defendant, CITY OF NEW YORK, supervised the Queens County Central Booking Facility located at 125-01 Queens Blvd Kew Garden, NY.

28. That, at all times hereinafter mentioned, defendant, NEW YORK POLICE DEPARTMENT, supervised the Queens County Central Booking Facility located at 125-01 Queens Blvd Kew Garden, NY.

29. That, at all times hereinafter mentioned, defendant, CITY OF NEW YORK, owned the Vernon C. Bain Center located at 1 Halleck Street, Bronx, NY.

30. That, at all times hereinafter mentioned, defendant, NEW YORK POLICE DEPARTMENT, owned the Vernon C. Bain Center located at 1 Halleck Street, Bronx, NY.

31. That, at all times hereinafter mentioned, defendant, CITY OF NEW YORK, operated the Vernon C. Bain Center located at 1 Halleck Street, Bronx, NY.

32. That, at all times hereinafter mentioned, defendant, NEW YORK POLICE DEPARTMENT, operated the Vernon C. Bain Center located at 1 Halleck Street, Bronx, NY.

33. That, at all times hereinafter mentioned, defendant, CITY OF NEW YORK, controlled the Vernon C. Bain Center located at 1 Halleck Street, Bronx, NY.

34. That, at all times hereinafter mentioned, defendant, NEW YORK POLICE DEPARTMENT, controlled the Vernon C. Bain Center located at 1 Halleck Street, Bronx, NY.

35. That, at all times hereinafter mentioned, defendant, CITY OF NEW YORK, supervised the Vernon C. Bain Center located at 1 Halleck Street, Bronx, NY.

36. That, at all times hereinafter mentioned, defendant, NEW YORK POLICE DEPARTMENT, supervised the Vernon C. Bain Center located at 1 Halleck Street, Bronx, NY.

37. That, at all times hereinafter mentioned, defendant, CITY OF NEW YORK, owned the One Hundredth (100th) Precinct of the New York Police Department located at 9224 Rockaway Beach Blvd, Rockaway Beach, NY.

38. That, at all times hereinafter mentioned, defendant, NEW YORK POLICE DEPARTMENT, owned the One Hundredth (100th) Precinct of the New York Police

Department located at 9224 Rockaway Beach Blvd, Rockaway Beach, NY.

39. That, at all times hereinafter mentioned, defendant, CITY OF NEW YORK, operated the One Hundredth (100th) Precinct of the New York Police Department located at 9224 Rockaway Beach Blvd, Rockaway Beach, NY.

40. That, at all times hereinafter mentioned, defendant, NEW YORK POLICE DEPARTMENT, operated the One Hundredth (100th) Precinct of the New York Police Department located at 9224 Rockaway Beach Blvd, Rockaway Beach, NY.

41. That, at all times hereinafter mentioned, defendant, CITY OF NEW YORK, controlled the One Hundredth (100th) Precinct of the New York Police Department located at 9224 Rockaway Beach Blvd, Rockaway Beach, NY.

42. That, at all times hereinafter mentioned, defendant, NEW YORK POLICE DEPARTMENT, controlled the One Hundredth (100th) Precinct of the New York Police Department located at 9224 Rockaway Beach Blvd, Rockaway Beach, NY.

43. That, at all times hereinafter mentioned, defendant, CITY OF NEW YORK, supervised the One Hundredth (100th) Precinct of the New York Police Department located at 9224 Rockaway Beach Blvd, Rockaway Beach, NY.

44. That, at all times hereinafter mentioned, defendant, NEW YORK POLICE DEPARTMENT, supervised the One Hundredth (100th) Precinct of the New York Police Department located at 9224 Rockaway Beach Blvd, Rockaway Beach, NY.

45. That, on or about January 13, 2018 at approximately 1:00 p.m. plaintiff herein was a lawful pedestrian on or about Beach 20th Street and Cornaga Avenue, Far Rockaway, NY.

46. That, on or about January 13, 2018 at approximately 1:00 p.m. plaintiff herein was unlawfully stopped, detained and questioned, without reason or just cause, on or about

Beach 20th Street and Cornaga Avenue, Far Rockaway, NY by defendants, POLICE OFFICER JOSEPH FERRIGNO – Shield No. 15647, SERGEANT EDELIO CRUZ, DETECTIVE “JOHN” SHELLS and POLICE OFFICER “JOHN DOE”.

47. That, on or about January 13, 2018 at approximately 1:00 p.m., plaintiff herein remained stopped, detained, falsely arrested and imprisoned, without reason or just cause, and was then transported by defendants, POLICE OFFICER JOSEPH FERRIGNO – Shield No. 15647, SERGEANT EDELIO CRUZ, DETECTIVE “JOHN” SHELLS and POLICE OFFICER “JOHN DOE”, about or near 4020 Beach Channel Drive, Far Rockaway, NY for a line up.

48. That, shortly thereafter on or about January 13, 2018 plaintiff herein remained falsely arrested and imprisoned and was then transported by defendants, POLICE OFFICER JOSEPH FERRIGNO – Shield No. 15647, SERGEANT EDELIO CRUZ, DETECTIVE “JOHN” SHELLS and POLICE OFFICER “JOHN DOE”, to the One Hundred First (101st) Precinct of the New York Police Department located at 16-12 Mott Avenue, Far Rockaway, NY.

49. That, plaintiff herein remained unlawfully arrested and imprisoned thereat by defendants herein until on or about January 15, 2015 at approximately 9:00 p.m.

50. That, on or January 15, 2015 at approximately 9:00 p.m. plaintiff herein was then transported from the aforesaid location to the Queens County Central Booking Facility located at 125-01 Queens Blvd Kew Garden, NY where he remained falsely arrested and imprisoned and was thereafter unlawfully charged and maliciously prosecuted by defendants herein.

51. That, plaintiff herein was thereafter transferred to the Vernon C. Bain Center located at 1 Halleck Street, Bronx, NY 10474 by defendants herein and remained falsely

arrest and imprisoned, unlawfully charged and maliciously prosecuted by defendants herein until his release therefrom on or about January 17, 2018 at approximately 5:00 a.m.

52. That, plaintiff herein remained unlawfully charged and maliciously prosecuted by defendants herein until on or about January 30, 2018 when all charges were dismissed in plaintiff favor.

53. That, on or about March 17, 2018 at approximately 11:00 a.m. plaintiff herein was a lawful pedestrian near or in front of 19-19 Cornaga Avenue, Far Rockaway, NY.

54. That, on or about March 17, 2018 at approximately 11:00 a.m. plaintiff herein was unlawfully stopped, detained and questioned, without reason or just cause, near or in front of 19-19 Cornaga Avenue, Far Rockaway, NY by defendants, POLICE OFFICER JOSEPH FERRIGNO – Shield No. 15647, SERGEANT EDELIO CRUZ, DETECTIVE “JOHN” SHELLS and POLICE OFFICER “JOHN DOE”.

55. That, on or about March 17, 2018 at approximately 11:00 a.m. plaintiff herein remained stopped, detained, falsely arrested and imprisoned, without reason or just cause, and was then transported by defendants, POLICE OFFICER JOSEPH FERRIGNO – Shield No. 15647, SERGEANT EDELIO CRUZ, DETECTIVE “JOHN” SHELLS and POLICE OFFICER “JOHN DOE”, to the One Hundred First (101st) Precinct of the New York Police Department located at 16-12 Mott Avenue, Far Rockaway, NY where plaintiff was questioned about the January 13, 2018 claims/charges that were dismissed on January 30, 2018.

56. That on or about March 17, 2019 at approximately 5:00 p.m., plaintiff herein was then transferred to Queens County Central Booking Facility by defendants herein and remained stopped, detained, falsely arrested and imprisoned until approximately 9:00 p.m., when he was thereafter transported to the One Hundredth (100th) Precinct of the New York

Police Department located at 9224 Rockaway Beach Blvd, Rockaway Beach, NY where he was further questioned about the January 13, 2018 claims/charges that were dismissed on January 30, 2018 while remaining detained, falsely arrested and imprisoned by defendants herein.

57. That, plaintiff herein remained unlawfully arrested and imprisoned thereat by defendants herein until March 18, 2018 at approximately 7 a.m. when he was transferred back to the One Hundred First (101st) Precinct of the New York Police Department located at 16-12 Mott Avenue, Far Rockaway, NY.

58. That, plaintiff herein remained at the One Hundred First (101st) Precinct of the New York Police Department located at 16-12 Mott Avenue, Far Rockaway, NY until March 18, 2018 at approximately 8 p.m. when he was then transported back to the Queens County Central Booking Facility while detained, falsely arrested and imprisoned.

59. That, plaintiff herein remained within the Queens County Central Booking Facility detained, falsely arrested and imprisoned until his release on March 18, 2018 at approximately 11 p.m.

AS AND FOR A FIRST CAUSE OF ACTION

60. That, plaintiff herein repeats, reiterates and re-alleges each and every allegation as set forth in paragraphs "1" through "59" as if the same had been fully set forth herein.

61. That, defendants, CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT, were negligent in the hiring, supervision, training and retention of defendants, POLICE OFFICER JOSEPH FERRIGNO – Shield No. 15647, SERGEANT EDELIO CRUZ, DETECTIVE "JOHN" SHELLS and POLICE OFFICER "JOHN DOE".

62. That, defendants, CITY OF NEW YORK and NEW YORK POLICE

DEPARTMENT, knew or should have known that, prior to, at and subsequent to the time when defendants, CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT, engaged defendants, POLICE OFFICER JOSEPH FERRIGNO – Shield No. 15647, SERGEANT EDELIO CRUZ, DETECTIVE “JOHN” SHELLS and POLICE OFFICER “JOHN DOE”, that they were persons of incompetence and indifference; that they had previously unlawfully and without just cause stopped, detained, questioned, falsely arrest, imprisoned and maliciously prosecuted persons under similar circumstances claimed herein; and were known by general reputation to be incompetent and indifferent.

63. That, defendants, CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT, failed and neglected to make any, or appropriate, inquiries with respect to the competence, temperament and character of their employees the defendants, POLICE OFFICER JOSEPH FERRIGNO – Shield No. 15647, SERGEANT EDELIO CRUZ, DETECTIVE “JOHN” SHELLS and POLICE OFFICER “JOHN DOE”, when these defendant police officers were employed and engaged by defendants, CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT.

64. That, the occurrence herein was occasioned solely and wholly as a result of the negligence of the defendants, CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT, in the hiring, supervision, training and retention of defendants, POLICE OFFICER JOSEPH FERRIGNO – Shield No. 15647, SERGEANT EDELIO CRUZ, DETECTIVE “JOHN” SHELLS and POLICE OFFICER “JOHN DOE” first names “JOHN” and last names “DOE” being fictitious and unknown at the present time.

65. That, by virtue of the aforesaid, plaintiff herein suffered serious and severe personal and emotional injuries and out-of-pocket expenses all to his damage in a sum of money which exceeds the monetary jurisdiction of all lower courts.

AS AND FOR A SECOND CAUSE OF ACTION

66. Plaintiff herein, repeats, reiterates and re-alleges each and every allegation as set forth in paragraphs "1" through "65" as if the same had been fully set forth herein.

67. That, at the aforesaid times and places defendants, POLICE OFFICER JOSEPH FERRIGNO – Shield No. 15647, SERGEANT EDELIO CRUZ, DETECTIVE "JOHN" SHELLS and POLICE OFFICER "JOHN DOE", failed to protect plaintiff herein and unjustly, intentionally, unlawfully stopped, detained and falsely arrested plaintiff herein or caused plaintiff herein to be, become and remain falsely arrested.

68. That, defendants, POLICE OFFICER JOSEPH FERRIGNO – Shield No. 15647, SERGEANT EDELIO CRUZ, DETECTIVE "JOHN" SHELLS and POLICE OFFICER "JOHN DOE", intentionally confined plaintiff; that, plaintiff herein was aware of the confinement; plaintiff herein did not consent to the confinement; and said confinement was not otherwise privileged.

69. By virtue of the aforesaid, plaintiff herein was caused to sustain serious and severe personal injuries and incur medical expenses and out-of-pocket expenses all to his damage in a sum of money which exceeds the monetary jurisdiction of all lower courts.

AS AND FOR A THIRD CAUSE OF ACTION

70. Plaintiff herein repeats, reiterates and re-alleges each and every allegation as set forth in paragraphs "1" through "69" as if the same had been fully set forth herein.

71. That, at the aforesaid times and places defendants, POLICE OFFICER JOSEPH FERRIGNO – Shield No. 15647, SERGEANT EDELIO CRUZ, DETECTIVE "JOHN" SHELLS and POLICE OFFICER "JOHN DOE", failed to protect plaintiff herein and unjustly, intentionally, unlawfully and falsely imprisoned plaintiff herein or caused plaintiff herein to be, become and remain falsely imprisoned.

72. That, defendants, POLICE OFFICER JOSEPH FERRIGNO – Shield No. 15647, SERGEANT EDELIO CRUZ, DETECTIVE “JOHN” SHELLS and POLICE OFFICER “JOHN DOE”, intended to confine plaintiff herein; plaintiff herein was conscious of the confinement; plaintiff herein did not consent to the confinement; and said confinement was not otherwise privileged.

73. By virtue of the aforesaid, plaintiff herein was caused to sustain serious and severe personal injuries and incur medical expenses and out-of-pocket expenses all to his damage in a sum of money which exceeds the monetary jurisdiction of all lower courts.

AS AND FOR A FOURTH CAUSE OF ACTION

74. Plaintiffs herein repeat, reiterate and re-allege each and every allegation as set forth in paragraphs “1” through “73” as if the same had been fully set forth herein.

75. That, at the aforesaid times and places plaintiff herein was maliciously prosecuted by defendants, who under the facts available did not have an objective, good faith belief that the plaintiff was involved in any criminal acts, guilty of any wrong-doing or posed a danger.

76. That, defendants herein caused criminal proceedings to be commenced against the plaintiff herein; that said criminal proceedings were thereafter terminated in favor of the plaintiff herein; that, the criminal proceedings lacked probable cause; and that, the criminal proceedings were brought out of actual malice.

77. By virtue of the aforesaid, the plaintiff herein was caused to sustain serious and severe personal injuries and out-of-pocket expenses all to his damage in a sum of money which exceeds the monetary jurisdiction of all lower courts.

AS AND FOR A FIFTH CAUSE OF ACTION

78. Plaintiff herein repeats, reiterates and re-alleges each and every allegation as

set forth in paragraphs "1" through "77" as if the same had been fully set forth herein.

79. That, at the aforementioned times and places, plaintiff herein was unlawfully and without just cause stopped, questioned, detained, falsely arrest and imprisoned and maliciously prosecuted by defendants, POLICE OFFICER JOSEPH FERRIGNO – Shield No. 15647, SERGEANT EDELIO CRUZ, DETECTIVE "JOHN" SHELLS and POLICE OFFICER "JOHN DOE", without just cause or provocation.

80. That, defendants, POLICE OFFICER JOSEPH FERRIGNO – Shield No. 15647, SERGEANT EDELIO CRUZ, DETECTIVE "JOHN" SHELLS and POLICE OFFICER "JOHN DOE", used their position and power which was clearly unlawful and unjust in light of the circumstances existing at the time.

81. That, the improper and unlawful stopping, questioning, detaining, false arrest and imprisonment and malicious prosecution of plaintiff herein by defendants, POLICE OFFICER JOSEPH FERRIGNO – Shield No. 15647, SERGEANT EDELIO CRUZ, DETECTIVE "JOHN" SHELLS and POLICE OFFICER "JOHN DOE", violated plaintiff's civil rights as afforded under the Constitutions and laws of the United States and the State of New York.

82. That, the acts of defendants, POLICE OFFICER JOSEPH FERRIGNO – Shield No. 15647, SERGEANT EDELIO CRUZ, DETECTIVE "JOHN" SHELLS and POLICE OFFICER "JOHN DOE", were done under the color of law and under the color of authority to be executed justly by defendants herein.

83. That, the failure of defendants, POLICE OFFICER JOSEPH FERRIGNO – Shield No. 15647, SERGEANT EDELIO CRUZ, DETECTIVE "JOHN" SHELLS and POLICE OFFICER "JOHN DOE", in the exercise of their functions and their failure to enforce the laws of the United States and of the City and State of New York were carried out willfully,

wantonly, maliciously and with such reckless disregard for the consequences so as to display a conscious disregard for the dangers of harm and injury to the citizens of the City of New York which include plaintiff herein.

84. That, the unlawful stopping, questioning, detaining, false arrest and imprisonment and malicious prosecution of plaintiff herein by defendants, POLICE OFFICER JOSEPH FERRIGNO – Shield No. 15647, SERGEANT EDELIO CRUZ, DETECTIVE “JOHN” SHELLS and POLICE OFFICER “JOHN DOE”, violated plaintiff’s rights under the Fourth Amendment of the United States Constitution to be free from unreasonable searches and seizures; the Fifth Amendment of the United States Constitution protecting against the deprivation of life, liberty or property without due process of law; the Eighth Amendment of the United States Constitution to be free from cruel and unusual punishment and the Fourteenth Amendment of the United States Constitution protecting against the deprivation of life, liberty or property without due process of law as well as the civil rights protections afforded to the plaintiff under the Constitution of the State of New York.

85. By virtue of the aforesaid, plaintiff herein was caused to sustain serious and severe personal injuries and incur medical expenses and out-of-pocket expenses all to his damage in a sum of money which exceeds the monetary jurisdiction of all lower courts.

AS AND FOR A SIXTH CAUSE OF ACTION

86. Plaintiff herein repeats, reiterates and re-alleges each and every allegation as set forth in paragraphs “1” through “85” as if the same had been fully set forth herein.

87. That, at the aforementioned times and places, plaintiff herein was improperly and unlawfully stopped, questioned, detained, falsely arrested and imprisoned and maliciously prosecuted by defendants, POLICE OFFICER JOSEPH FERRIGNO – Shield

No. 15647, SERGEANT EDELIO CRUZ, DETECTIVE "JOHN" SHELLS and POLICE OFFICER "JOHN DOE", without just cause or provocation.

88. That, defendants, POLICE OFFICER JOSEPH FERRIGNO – Shield No. 15647, SERGEANT EDELIO CRUZ, DETECTIVE "JOHN" SHELLS and POLICE OFFICER "JOHN DOE", used their position and power which was clearly unlawful and unjust in light of the circumstances existing at the time.

89. That, the improper and unlawful stopping, questioning, detaining, false arrest and imprisonment and malicious prosecution of plaintiff herein by defendants, POLICE OFFICER JOSEPH FERRIGNO – Shield No. 15647, SERGEANT EDELIO CRUZ, DETECTIVE "JOHN" SHELLS and POLICE OFFICER "JOHN DOE", violated plaintiff's rights under the Fourth Amendment of the United States Constitution to be free from unreasonable searches and seizures, the Fifth Amendment of the United States Constitution protecting against the deprivation of life, liberty or property without due process of law, the Eighth Amendment of the United States Constitution to be free from cruel and unusual punishment and the Fourteenth Amendment of the United States Constitution protecting against the deprivation of life, liberty or property without due process of law as well as the civil rights protections afforded to the plaintiff under the Constitution of the State of New York.

90. That, the acts of defendants herein were done under the color of law and under the color of authority to be executed justly by defendants herein.

91. That, the violation of plaintiff's constitutional rights were caused by the implementation of a custom, policy and/or official act of defendants, CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT and/or their deliberate indifference to the stopping, questioning, detaining, false arrest and imprisonment and malicious prosecution

by their police officers of plaintiff herein and other individuals in similar circumstances as those of plaintiff herein.

92. That, the custom, policy and/or official act and/or deliberate indifference of defendants, CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT, and their failure to enforce the laws of the United States and of the City and State of New York is evidenced by their reckless lack of cautious regard for the rights of citizens including plaintiff herein and exhibited a lack of that degree of due care which prudent and reasonable individuals would show in executing the duties of defendants herein.

93. That such acts, customs and/or policies and/or deliberate indifference thereto were and are known to the defendants, CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT, including to the supervisors, decision and policy makers of defendants, CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT.

94. That the knowledge of said acts, customs and/or policies and/or deliberate indifference thereto by defendants, CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT, is demonstrated by the thousands of lawsuits filed, litigated, settled and/or tried to verdict by defendants, CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT, that allege the unlawful stopping, questioning, detaining, false arrest and imprisonment and malicious prosecution of individuals alleging incidents identical to those alleged herein as well as the continuous media coverage exposing and highlighting incidents identical to those alleged herein.

95. That, defendants, CITY OF NEW YORK and NEW YORK CITY DEPARTMENT OF CORRECTION, knew of said acts, customs and/or policies and/or were deliberately indifferent thereto and did nothing to prevent and/or created and harbored conditions to permit and allow its police officers, including the named defendant-officers

herein, to implement and carry out such acts, customs and/or polices with impunity and without regard for the rights afforded to all citizens including plaintiff herein.

96. That, the failure of defendants, CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT, in enforcing the laws of the State of New York and the rights afforded under the Constitution of the United States and its implementation of these known polices, customs and/or practices and/or deliberate indifference thereto led, allowed or permitted the unlawful stopping, questioning, detaining, false arrest and imprisonment and malicious prosecution of plaintiff herein, thereby violating plaintiff's civil rights as well as the rights afforded under the Constitutions of the United States and the State of New York and defendants, CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT, is thereby liable to plaintiff herein under 42 U.S.C. §1983 and the Constitution of the United States.

97. That, as a result of the aforesaid violations of plaintiff herein constitutional rights, plaintiff herein has been damaged in a sum of money which exceeds the monetary jurisdiction of all lower courts.

WHEREFORE, plaintiff herein demands judgment against defendants herein in a sum of money which exceeds the monetary jurisdiction of all lower courts, as and for a First Cause of Action; in a sum of money which exceeds the monetary jurisdiction of all lower courts, as and for a Second Cause of Action; in a sum of money which exceeds the monetary jurisdiction of all lower courts, as and for a Third Cause of Action; in a sum of money which exceeds the monetary jurisdiction of all lower courts, as and for a Fourth Cause of Action; in a sum of money which exceeds the monetary jurisdiction of all lower courts, as and for a Fifth Cause of Action; in a sum of money which exceeds the monetary jurisdiction of all lower courts, as and for a Sixth Cause of Action; together with interest,

costs and disbursements herein.

Dated: New York, NY
April 2, 2019

Yours, etc.,

NUSSIN S. FOGEL
Attorney for Plaintiff
Office & Post Office Address
299 Broadway, Suite 1818
New York, NY 10007
(212) 385-1122

ATTORNEY'S VERIFICATION

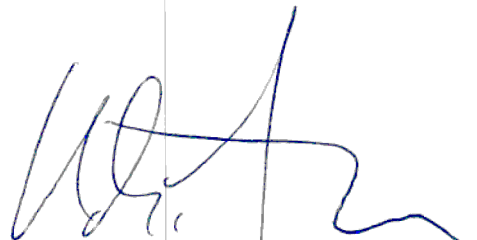
STATE OF NEW YORK)

COUNTY OF NEW YORK)

I, NUSSIN S. FOGEL, the undersigned, an attorney admitted to practice in the Courts of New York State, state that I am NUSSIN S. FOGEL, the attorney of record for the plaintiff herein, in the within action; I have read the foregoing Complaint and know the contents thereof; the same is true to my own knowledge, except as the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not by plaintiff, is that plaintiff resides outside of the county where affirmant maintains his office.

The grounds of my belief as to all matters not stated upon my own knowledge are as follows:

Information, records and data contained in affirmant's file and conversations had with the plaintiff herein.



NUSSIN S. FOGEL

I affirm that the foregoing statements are true, under the penalties of perjury

Dated: New York, New York
April 2, 2019